

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 57
JUDICIAL OFFICER: J. YAMAMOTO
HEARING DATE: 02/13/2026

The tentative ruling will become the Court's FINAL ruling unless by 4:00 p.m. the Court day before the hearing Counsel or self-represented parties email the department (no phone or fax) to request argument and specify the issues to be argued. Parties requesting argument must also similarly advise all other affected counsel or self-represented parties no later than 4:00 p.m. that same day. Failure to timely advise the Court and other affected participants will preclude any party from arguing the matter (Local Rule 3.43(2)).

The Court waives notice of parties appearing remotely via ZOOM (no CourtCall allowed). Parties do not need to file a Notice of Remote Appearance, but must serve the notice as set forth in Rule 3.672 unless the parties have stipulated to waive notice.

<https://www.courts.ca.gov/documents/ra010.pdf>

Department 57's email address is: dept57@contracosta.courts.ca.gov

Department 57 is inviting you to a scheduled ZoomGov meeting.

Topic: Department 57 hearings

Time: This is a recurring meeting Meet anytime

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Discovery Law & Motion

1. 10:30 AM CASE NUMBER: C23-02085
CASE NAME: VLADYSLAV TSYBENKO VS. OLEXIY BUYADGIE
***HEARING ON MOTION FOR DISCOVERY DEEM MATTERS ADMITTED**
FILED BY: TSYBENKO, VLADYSLAV
TENTATIVE RULING:

Plaintiff's motion to compel Defendant to provide responses to requests for discovery is granted for one of the paid motions.

Plaintiff's motion for an order to deem Requests for Admission, Set One admitted is granted as against Defendant – OLEXIY BUYADGIE. Motion was unopposed and no RFA responses were served prior to the hearing. The court deems RFA, set one, admitted. Sanctions in the amount of \$ 2,760 are awarded to plaintiff to be paid by defendant – OLEXIY BUYADGIE within 20 days of service of this order.

2. 10:30 AM CASE NUMBER: C25-00549
CASE NAME: JESUS MUNGUIA VS. LAS MONTANAS MARKET, INC.
***HEARING ON MOTION FOR DISCOVERY RE ADMISSIONS DEEMED ADMITTED**
FILED BY: LAS MONTANAS MARKET, INC
TENTATIVE RULING:

Defendant's motion for an order to deem Requests for Admission, Set One admitted is granted. Motion was unopposed and no RFA responses were served prior to the hearing. The court deems RFA, Set One, admitted.

Sanctions denied.

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3. 10:30 AM CASE NUMBER: C25-00132

CASE NAME: MARK VELASQUEZ VS. TIMOTHY NEAL

***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD, SET 1**

FILED BY: NEAL, TIMOTHY DANIEL

TENTATIVE RULING:

Defendant's motion to compel Plaintiff to provide responses to requests for discovery is granted.

Considering the Defendant's declaration, the court orders sixty days to comply with this order. Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Plaintiff shall serve responses to Defendant's Form Interrogatories – Set One, and Requests for Production of Documents – Set One,.

Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

Sanctions not requested

4. 10:30 AM CASE NUMBER: C25-00132

CASE NAME: MARK VELASQUEZ VS. TIMOTHY NEAL

***HEARING ON MOTION FOR DISCOVERY COMPEL PLTFS RESPONSES TO FORM INTEROGS, SET 1**

FILED BY: NEAL, TIMOTHY DANIEL

TENTATIVE RULING:

Defendant's motion to compel Plaintiff to provide responses to requests for discovery is granted.

Considering the Defendant's declaration, the court orders sixty days to comply with this order. Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Plaintiff shall serve responses to Defendant's Form Interrogatories – Set One, and Requests for Production of Documents – Set One,.

Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

Sanctions not requested

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5. 10:30 AM CASE NUMBER: C25-01274

CASE NAME: MARK ZUCCA VS. NELLY PICKERT

*HEARING ON MOTION FOR DISCOVERY COMPEL ANSWERS TO 1ST FORM INTERROGATORIES
FILED BY: WASNIOWSKI, EDWARD S.

TENTATIVE RULING:

Defendant's motion to compel Plaintiff to provide responses to request for first set of written discovery is granted.

Considering the Defendant's declaration, the court orders sixty days to comply with this order. Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Defendant's Form Interrogatories – Set One.

Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

Sanctions in the amount of \$ 400 are awarded to Defendant to be paid by Plaintiff within 20 days of service of this order.